
BEFORE THE IOWA BOARD OF SOCIAL WORK

Re:	)	CASE NO. 15-0131
Social Work Bachelor's Level License of	)	
	)	
LANNY FIELDS	)	COMBINED STATEMENT OF
License No. 04055	)	CHARGES, SETTLEMENT
Respondent.	)	AGREEMENT, AND FINAL ORDER

COMES NOW the Iowa Board of Social Work ("Board") and Lanny Fields ("Respondent"), 1739 108th Place, Knoxville, Iowa 50138, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2015), and 645 IAC 12, stating the following:

A. STATEMENT OF CHARGES

Count I

1. Respondent is charged with failing to submit the biennial report of continuing education in response to an audit, as required by 645 IAC 4.11(1), pursuant to Iowa Code section 147.55(9) and 645 IAC 283.2(12) and (22).

B. FACTUAL CIRCUMSTANCES

2. Respondent was selected for a post-renewal continuing education audit following the most recent renewal of his social work license. The audit requested documentation of continuing education hours obtained in the 2013-2014 biennium.

3. Respondent failed to submit any documentation of continuing education hours in response to the audit.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

4. The Board has jurisdiction over the parties and the subject matter of these proceedings.

5. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

6. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

7. Respondent acknowledges that he has the right to be represented by counsel on this matter.

8. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

9. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

10. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

11. This Order shall not be binding as to any new complaints received by the Board.

12. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

13. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

14. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

15. Respondent is hereby **CITED** for failing to submit the biennial report of continuing education in response to an audit and **WARNED** that Respondent's failure to comply with the law governing the practice of social work in Iowa could result in further discipline.

16. Respondent agrees to pay a civil penalty in the amount of two hundred fifty dollars (\$250). The civil penalty shall be made payable to the Treasurer of Iowa and paid within (30) days of the Board's approval of this Order. All civil penalty payments shall be deposited into the State of Iowa general fund.

17. Respondent shall complete twenty-seven (27) hours of continuing education in accordance with the specifications of 645 IAC 281. Said continuing education may consist of any continuing education hours obtained from January 1, 2013 through present or any continuing education hours completed within six (6) months of Board approval of this Order. Any continuing education hours obtained to fulfill the above requirement cannot be used as part of the continuing education hours Respondent is required to obtain for the 2015-2016 biennium. Respondent shall provide copies of all certificates of completion to the Board as proof of successful completion of this requirement within six (6) months of Board approval of this Order. Respondent is responsible for all costs associated with obtaining the required continuing education.

18. The civil penalty and the documentation required to be submitted to the Board under paragraphs 16 and 17, should be mailed to the Iowa Board of Social Work, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319.

19. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC 13 and 283.

This Combined Statement of Charges, Settlement Agreement, and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 28 day of October, 2015.


LANNY FIELDS
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Social Work on the 9 day of November, 2015.


Chairperson
Iowa Board of Social Work

Copy to:

Laura Steffensmeier
Assistant Attorney General
Licensing & Administrative Law Division
Iowa Department of Justice
Hoover Building, 2nd Floor
Des Moines, IA 50319